

		A party may move to strike a pleading pursuant to Code of Civil Procedure section 435. In turn, Code of Civil Procedure section 436 provides that a court may strike (a) “any irrelevant, false, or improper matter” in a pleading, or strike (b) all or any part of a pleading “not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” In light of the court’s concurrent ruling regarding Defendants’ demurrer, the motion to strike Plaintiffs’ punitive damages allegations, claims for punitive damages and attorneys’ fees, and Exhibits 1-7 is MOOT. Defendants to give notice.
3	Roberto vs. Clever Care of Golden State, Inc.	<u>Demurrer to Complaint</u> TENTATIVE RULING: Defendant Clever Care of Golden State Inc.’s Demurrer to Plaintiff Ronald Roberto’s Complaint is OVERRULED. The Court finds, while Defendant did not meet and confer “in person or by telephone,” as required by section 430.41, subdivision (a) of the Code of Civil Procedure, the parties have made their positions clear, yet they have been unable to resolve their dispute, thus necessitating the Demurrer. The Court GRANTS Defendant’s requests for judicial notice. <u>Standard for Demurrer</u> In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) Questions of fact cannot be decided on demurrer. (<i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) The complaint must be construed liberally by drawing reasonable inferences from the